

evidence favorable to Imbler by a police fingerprint expert who testified at trial and by the police who investigated Hasson's murder.⁹ The District Court ordered that the writ of habeas corpus issue unless California retried Imbler within 60 days, and denied a petition for rehearing.

The State appealed to the Court of Appeals for the Ninth Circuit, claiming that the District Court had failed to give appropriate deference to the factual determinations of the Supreme Court of California as required by 28 U. S. C. § 2254 (d). The Court of Appeals affirmed, finding that the District Court had merely "reached different conclusions than the state court in applying federal constitutional standards to [the] facts," *Imbler v. California*, 424 F. 2d 631, 632, and certiorari was denied, 400 U. S. 865 (1970). California chose not to retry Imbler, and he was released.

At this point, after a decade of litigation and with Imbler now free, the stage was set for the present suit. In April 1972, Imbler filed a civil rights action, under 42 U. S. C. § 1983 and related statutes, against respondent Pachtman, the police fingerprint expert, and various other officers of the Los Angeles police force. He alleged

police officer present in the courtroom knew it was misleading. As to the false testimony, the District Court concluded that Pachtman had "cause to suspect" its falsity although, apparently, no actual knowledge thereof. See 298 F. Supp., at 799-807. The Supreme Court of California earlier had addressed and rejected allegations based on many of the same parts of Costello's testimony. It found either an absence of falsehood or an absence of prosecutorial knowledge in each instance. See *In re Imbler*, 60 Cal. 2d 554, 562-565, and n. 3, 387 P. 2d 6, 10-12, and n. 3 (1963).

⁹ See 298 F. Supp., at 809-811. The Supreme Court of California earlier had rejected similar allegations. See *In re Imbler*, *supra*, at 566-568, 387 P. 2d, at 12-13.